



GOVERNMENT OF BALOCHISTAN
PUBLIC PROCUREMENT REGULATORY
AUTHORITY

Dated Quetta, the 20th August, 2024

NOTIFICATION

No. BPPRA/1-31/2024/ 7159-72 /. In exercise of the powers conferred by Section 28 of the Balochistan Public Procurement Regulatory Authority Act, 2009 (Balochistan Act No. VIII of 2009), the Government of Balochistan Public Procurement Regulatory Authority is pleased to make the "Balochistan Public Procurement "DIRECT CONTRACTING, RULE 51(1)(B)(III)" regulations, namely:-

1. Purpose

These regulations establish the conditions under which procurement from a single source under clause 51(1)(b)(iii) without competition may be conducted by the Procuring Agency.

2. Scope

These regulations apply exclusively to procurements where a change of contractor or supplier would result in significant technical challenges or incompatibilities.

3. Conditions for Single Source Procurement

Single source procurement may be utilized only under the following conditions:

(a) Technical Specifications and Compatibility

- (i) The material or service to be procured must have specific technical specifications or characteristics that are essential for the agency's operations.
- (ii) A change of contractor or supplier would necessitate the acquisition of works, goods and services with different technical specifications, leading to incompatibility issues.

(b) Operational and Maintenance Difficulties

- (i) Switching to a different contractor or supplier would result in disproportionate technical difficulties in the operation and maintenance of the materials or services.
- (ii) The technical difficulties must be significant enough to disrupt normal operations or require substantial additional resources to manage.

4. Approval Process

To initiate a single source procurement, the following steps must be adhered to:

(a) Justification Report

The procuring agency must prepare a detailed justification report, clearly outlining the reasons for choosing a single source procurement. This report must address:

- (i) specific technical specifications.

- (ii) potential incompatibility issues and technical difficulties.
- (iii) An assessment of the impact on operations/execution and maintenance.

(b) Review and Approval

- (i) The justification report must be reviewed by the Procurement Committee.
- (ii) The Procurement Committee will assess the validity of the justification and recommend to the Principle Accounting Officer to either approve or reject the request.
- (iii) If approved, the decision must be documented, and the single source procurement process may proceed.

(c) Documentation and Transparency

- (i) All documents related to the single source procurement must be maintained for audit and review purposes.
- (ii) The Procuring Agency must ensure transparency and accountability in the decision-making process.

5. Effective Date

These regulations are effective immediately upon approval and notification and will remain in force until amended or rescinded by the appropriate authority.

By adhering to these guidelines, the Procuring Agency ensures that single source procurement is conducted only when absolutely necessary and in a transparent and accountable manner.

**SECRETARY
FINANCE DEPARTMENT**

**The Chief Controller,
Printing and Stationery, Department,
Balochistan, Quetta for publications.**

No. & Date Even.

Copy Forwarded to:-

1. The Additional Chief Secretary (Dev), Government of Balochistan, P&D Department, Quetta
2. The Senior Member/Members Board of Revenue, Balochistan
3. The Principal Secretary to the Governor Balochistan.
4. The Principal Secretary to the Chief Minister Balochistan
5. The Chairman, Chief Minister's Inspection Team, Balochistan
6. The Chairman, Balochistan Public Service Commission, Quetta
7. All Administrative Secretaries to Government of Balochistan.
8. The Accountant General Balochistan, Quetta.
9. The Secretary Balochistan Provincial Assembly, Quetta
10. All Commissioners in Balochistan
11. The Secretary, Provincial Mohtasib (ombudsman) Secretariat, Balochistan, Quetta
12. The Registrar, Balochistan High Court, Quetta
13. The Additional Secretary Staff to the Chief Secretary, Balochistan.
14. Master File


(MANAGING DIRECTOR)
Balochistan Public Procurement Regulatory Authority